

10.	National Funding, Inc. vs. Westland Campers, Inc. 25-01514351	1. Motion for Summary Judgment and/or Adjudication 2. Case Management Conference Plaintiff National Funding, Inc.’s Motion for Summary Judgment is DENIED. (Code Civ. Proc. §437c, subd. (p)(1).) Plaintiff has failed to meet its initial burden to show it is entitled to summary judgment. Defendant’s Request for Judicial Notice is GRANTED. (Evid. Code §452, subd. (d) [court records].) The Court takes judicial notice of the fact that the request for dismissal in the prior action was filed on 6/23/25. Defendant’s evidentiary objection is OVERRULED. Code Civ. Proc. § 437c(p)(1) sets forth a plaintiff’s burden when moving for summary judgment. It provides: “A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on that cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The defendant or cross-defendant may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.” ““[W]hen a plaintiff moves for summary adjudication, the plaintiff meets his or her burden of showing that there is no defense to a cause of action if the plaintiff proves each element of the cause of action entitling the party to judgment on the cause of action. When plaintiffs bear the burden of proof by a preponderance of evidence at trial, they must present evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not—otherwise, they would not be entitled to judgment as a matter of law, but would have to present their evidence to a trier of fact. If the plaintiff meets their burden, the defendant must set forth specific facts showing a triable issue of material facts exist.” (<i>Campbell v. FPI Management, Inc.</i> (2024) 98 Cal.App.5th 1151, 1162.) Plaintiff moves for summary judgment of its cause of action for breach of contract. The elements for a cause of action for breach of contract are: “(1) the existence of the contract, (2) plaintiff’s
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		performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (<i>Oasis West Realty LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) Plaintiff fails to meet its initial burden to establish Plaintiff’s performance or excuse for nonperformance of the contract it seeks to enforce. The only evidence provided is the conclusory statement from the declaration of Sandra Otero asserting that “National Funding has performed all conditions and promises required to be performed on the its part under the terms of the Settlement Agreement.” (ROA 18, ¶8.) Even if this was sufficient to meet Plaintiff’s initial burden on summary judgment, Defendant has established a triable issue of fact as to this element. Defendant has shown that Plaintiff was required to file a dismissal of the prior action within 10 days of receipt of the third payment. Defendant has shown that Plaintiff did not file the dismissal until 28 days after the third payment was made. Plaintiff argues it is nevertheless entitled to summary judgment because Plaintiff substantially complied with its obligations under the agreement. But the very authority Plaintiff relies upon recognizes that determination of substantial performance is a question of fact. (See <i>Magic Carpet Ride LLC v. Rugger Investment Group, LLC</i> (2019) 41 Cal.App.5th 357, 364.) Since Plaintiff has not shown that the undisputed facts establish that Plaintiff substantially performed its own obligations under the settlement agreement, it has not met its initial burden to prove each element of its cause of action for breach of contract. Accordingly, Plaintiff is not entitled to summary judgment. The Court now VACATES the Case Management Conference and sets this matter for a COURT TRIAL on April 23, 2027, at 11:00 a.m. in Department C12. Moving Party shall provide notice.
11.	Reese vs. Day 25-01469806	1. Demurrer to Amended Complaint 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Special Interrogatories 4. Motion to Compel Production 5. Motion to Deem Facts Admitted 6. Case Management Conference 7. Order to Show Cause re: Dismissal (Failure to Serve) On April 17, 2026, Plaintiff’s counsel filed a Notice with the Court advising the Court of Plaintiff’s recent passing. ROA 119.